5. The period of six months prescribed in Article 201 for State Legislature to act when the bill is returned by the President can be made applicable for the President also to decide on assenting or withholding assent to a state bill reserved for consideration of the President.

6. Parliament should make a law on the subject of Entry 14 of List I (treaty making and implementing it through Parliamentary legislation) to streamline the procedures involved. The exercise of the power obviously cannot be absolute or unchartered in view of the federal structure of legislative and executive powers.

7. Financial obligations and its implications on state finances arising out of treaties and agreements should be a permanent term of reference to the Finance Commissions constituted from time to time.

8. While selecting Governors, the Central Government should adopt the following strict guidelines as recommended in the Sarkaria Commission report and follow its mandate in letter and spirit:

(i) He/she should be eminent in some walk of life

(ii) He/she should be a person from outside the state

(iii) He/she should be a detached figure and not too intimately connected with the local politics of the state

(iv) He/she should be a person who has not taken too great a part in politics generally and particularly in the recent past

9. Governors should be given a fixed tenure of five years and their removal should not be at the sweet will of the Government at the Centre.

10. The procedure laid down for impeachment of President, ***mutatis mutandis*** can be made applicable for impeachment of Governors as well.

11. Article 163 does not give the Governor a general discretionary power to act against or without the advice of his/her Council of Ministers. In fact, the area for the exercise of discretion is limited and even in this limited area, his/her choice of action should not be arbitrary or fanciful. It must be a choice dictated by reason, activated by good faith and tempered by caution.

12. In respect of bills passed by the Legis lative Assembly of a state, the Governor should take the decision within six months whether to grant assent or to reserve it for consideration of the President.

13. On the question of Governor's role in appointment of Chief Minister in the case of an hung assembly, it is necessary to lay down certain clear guidelines to be followed as Constitutional conventions. These guidelines may be as follows:

(i) The party or combination of parties which commands the widest support in the Legislative Assembly should be called upon to form the Government.

(ii) If there is a pre-poll alliance or coalition, it should be treated as one political party and if such coalition obtains a majority, the leader of such coalition shall be called by the Governor to form the Government.